
2:00 PM **LINE 8**

25-CLJ-03180

AMERICAN EXPRESS NATIONAL BANK VS. MARIANNE SULIT

AMERICAN EXPRESS NATIONAL BANK
MARIANNE SULIT

DOUGLAS S. WALLACE

MOTION TO ENTER JUDGMENT PURSUANT TO CCP 664.6

TENTATIVE RULING:

Plaintiff American Express National Bank's Motion to Enter Judgment Pursuant to Code of Civil Procedure, section 664.6 is **DENIED WITHOUT PREJUDICE**.

The Notice of Motion provides an incorrect address for the hearing. Department 28 is located at 800 N. Humboldt Street, San Mateo, California 94401. Plaintiff is to provide defendant with the correct address of the hearing in any future motion.

Further, the Stipulation provides that if defendant fails to make payments, then plaintiff may have judgment entered against defendant for \$4,078.56, plus court costs, less any amounts received by plaintiff from defendant. (Stipulation, ¶ 6.) Plaintiff's counsel states that defendant has defaulted in the payment agreement, by not making payments according to the terms. (Ren Decl., ¶ 7.) Plaintiff's counsel further states that "Defendant failed to make payments." (*Ibid.*) Plaintiff's counsel implies that no payments have been made by defendant, but this wording does not unequivocally state that defendant failed to make *any* payments. The declaration also does not address whether defendant is entitled to credit for any payments received. Therefore, any future motion is required to provide a supporting declaration that specifically addresses this issue.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 9**

25-CLJ-08043

LENDMARK FINANCIAL SERVICES, LLC VS JONATHAN PALHUCA

LENDMARK FINANCIAL SERVICES, LLC
JONATHAN PALHUCA

JAMES MACLEOD
PRO PER

DEFENDANT'S MOTION TO QUASH SERVICE OF SUMMONS BASED ON IMPROPER MAILING AFTER SUBSTITUTED SERVICE (CCP 418.10, 415.20)

TENTATIVE RULING:

For the reasons stated below, Defendant Jonathan Palhuca's "Motion to Quash Service of Summons Based on Improper Mailing After Substituted Service," filed March 26, 2026, is **DENIED**. (Code Civ. Proc., §§ 415.20, 418.10.) The motion is procedurally defective and lacks substantive merit.

Plaintiff's August 3, 2026 Request for Judicial Notice is **GRANTED**. (Evid. Code § 452, subd. (d).)

The motion is procedurally defective because defendant did not file a supporting Memorandum of Points & Authorities. (See Cal. Rules of Court, rules 3.1112; 3.1113.) The motion fails on this basis alone.

The motion also lacks substantive merit. Defendant's sole argument is that after plaintiff, pursuant to Code of Civil Procedure, section 415.20, subdivision (b), served defendant by leaving copies of the summons and complaint at defendant's home in Pacifica, plaintiff waited six days before mailing additional copies of the summons and complaint to defendant's home. Defendant argues that this six-day delay was not "prompt," which defendant argues renders the service invalid. This argument is unsupported. Section 415.20, subdivision (b) only requires that after leaving copies of the summons and complaint at the residence, additional copies of the summons and complaint must "thereafter" be mailed to defendant's residence. plaintiff did exactly that. Nothing in the statute, or any other cited authority, suggests that mailing copies of the summons and complaint six days after physical service was improper, or renders the service ineffective.

For the foregoing reasons, the motion to quash is denied.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.